

TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: June 15, 2026

Time: 2:00 PM

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1	Tarakji v. Secure One Capital Corp.	Cont. to 9/28.
2	Schutzman v. Stern	The application of attorney Sarah Benowich to appear pro hac vice as counsel for Defendants Oren Stern and Amit Louzon in this matter is hereby GRANTED pursuant to California Rules of Court, rule 9.40. Defendants Oren Stern and Amit Louzon shall give notice.
3	Mercedes-Benz Vehicle Trust v. Zamorano	Defendant Yanira Zamorano's unopposed motion to compel arbitration is GRANTED. Defendant met her burden to show a written arbitration agreement exists that covers plaintiff's claims in this action. (Code Civ. Proc., § 1281.2; <i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413; see Compl., Ex. A.) Plaintiff does not dispute the existence or enforceability of the arbitration agreement. (ROA 20.) This action is stayed pending completion of arbitration. (See Code Civ. Proc., § 1281.4.)

		The Case Management Conference scheduled for July 10, 2026 is VACATED. An Status Conference re Arbitration is scheduled for June 11, 2027, at 9:30 a.m. Defendant shall give notice of this ruling.
4	The Irvine Company LLC v. Taquero Taco, LLC	Plaintiff The Irvine Company LLC's unopposed motion for leave to file the Second Amended Complaint is GRANTED. The motion complies with California Rules of Court, rule 3.1324, and there was no prejudicial delay. (Code of Civ. Proc. § 473, subd. (a)(1); <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761 [applying "a policy of great liberality in permitting amendments"]; see also Declaration of Ernie Zachary Park ¶¶ 4-7.) The Court deems the filing of the Second Amended Complaint on March 17, 2026 to be proper. (ROA 141.) Plaintiff shall serve the SAC in accordance with Code of Civil Procedure section 415.10 et. seq. Counsel for Plaintiff shall give notice.
5	Cammack v. General Motors LLC	Before the Court is the Motion For Compliance Pursuant to C.C.P. § 871.26, filed on 3/23/26 by Defendant General Motors LLC ("GM"). Plaintiff Chad Cammack ("Plaintiff") asserts that he has now complied with the disclosure requirements at issue, which GM does not dispute on reply. The Motion therefore appears to be MOOT, except as to the issue of sanctions. Sanctions are clearly warranted here under C.C.P. § 871.26(j). Although Plaintiff asserts that there was some early uncertainty as to the application of §871.26 due to the opt-in provision that became effective on 4/1/25, there was no valid basis for uncertainty by the time GM filed its responsive pleading on 7/11/25. Plaintiff thus had 60 days from 7/11/25 to comply with C.C.P. § 871.26(f) and (g). Plaintiff failed to do so. (Lasater Decl., ¶ 6; Perks Decl. ¶ 7, Ex. 1.) Sanctions in the amount of \$1,500 are therefore imposed under C.C.P. § 871.26(j), on Strategic Legal Practices, APC, to be paid to GM, through its counsel of record, within 15 days. GM is to give notice of this ruling.
6	Johnson v. Hyundai Motor America	The Motion to Compel Binding Arbitration, filed on 3/16/26 by Defendant Hyundai Motor America (HMA) is DENIED. HMA has failed to show that the parties entered into a valid agreement to arbitrate here. HMA asserts that Plaintiff Alyssa Johnson (Plaintiff) agreed to arbitrate because HMA included an arbitration provision in its "Owner's Handbook & Warranty Information" (Warranty) for the vehicle. (Ameripour Decl., ¶ 4 and Ex. 2.) But HMA has not shown that the Warranty reflects an actual agreement with Plaintiff: HMA does not present any